

in part with an exclusion. It is ordained from henceforth, that they hold not plea of freehold, and that is absolute; nor of debt, nor of covenant of the people, but that is with exclusion, first to the causes (a) but only of the trespass of household and of other trespass done within the verge, and of contracts and covenants: so that these words (but only, &c.) reduce, as to the causes, the jurisdiction of the Court to its original institution, *sc.* to actions of trespass, debt, and covenant, and all other pleas are excluded. As to the persons, if this Act had not made any particular declaration, as appears before, they ought to have had the privilege of the house, *sc.* in trespass, where both, or at least one be of the house; and in case of debt and covenant, where both are of the house, and of that also this chapter has made an express declaration. And the exposition in (b) *Michelborn's case* in the Sixth Part of my Reports was affirmed for law: and *vide* there an Act passed both Houses of Parliament, anno 1 R. 2. & *vide inter petitiones Parliam' anno 1 E. 3. Lond' 10.* that there the Steward and Marshal, after the said Act, did encroach to them to hold other pleas than of trespass, debt, and covenant: as to the place, the statute has restrained it to the verge only; and because by colour of certain inventions of the Steward and Marshal *ad ampliandam jurisdictionem suam* as to pleas, persons, and precinct, this chapter has enacted, that from henceforth [75 a] the steward hold not plea of debt or other thing, but of the people of the household, so that the voluntary (c) consueance of debts before the Steward and Marshal by foreigners, did not give the said Court jurisdiction, but as an unjust encroachment upon the common law was ousted by this Act. It is also further enacted, that they shall hold no plea by bond made at the distress of the Steward or of the Marshal; by colour of which, as appears before, they encroached to themselves jurisdiction, not only when the parties had no privilege, but also of causes which did not belong to their jurisdiction, and those also done out of the verge, as appears by that which Fleta has before reported, and who has well expressed the true cause and sense of the two last branches, which of themselves were full of obscurity. As to the third part of the preamble, *sc.* How, &c. the body of the Act has three branches. 1. That they shall implead no plea of trespass, except the party was attached by them. 2. And they shall plead speedily from day to day, so that they may be pleaded and determined before that the King depart out of the bounds of the same verges where the trespass was done. 3. And if so it chance, that they cannot be determined within the bounds of the same verge, the pleas shall (d) cease before the Steward, and the matters be determined at the common law. And it was observed, that although the (e) Steward and Marshal are both Judges, yet in this last clause, as many in Fleta, the Steward is only named, because he was the lawyer, and therefore had the direction of the Court. And the conclusion of the body of the Act, as to these three points, is, and if the Steward or the Marshal do any thing against this ordinance, it shall be held as void. And this Act was of so great profit and consequence, that by the Act of Parliament anno 18 E. 3. cap. 7. it is enacted and commanded to be put in execution

And as to authorities in law, they are copious, and of four several natures. 1. The year-books. 2. Books written of the laws of England. 3. Judgments in Parliament: and all these are *thesauri aperti*. 4. Judicial records and precedents: and these are *thesauri absconditi*. And for direct authority in the point in the year-books, *vide* (a) 6 R. 2. Action sur le Statute pl. ult. 3 H. 6. Estoppel 18. Action sur le Statute 13. 7 H. 8. 30. 10 H. 6. 13. a. 14 H. 6. 6. b. 5 E. 4. 129. a. 19 E. 4. 8. b. 20 E. 4. 16. b. 22 E. 4. 11. 22 E. 4. 16. 22 E. 4. 31. b. *Vide* 48 E. 3. 17. b. & Regist. Original 111. the plaintiff shall never aver †, &c. that the one or other party is of the household *causa qua supra*. Register Original 185 a. *inter brevia de statuto, Rex Sene-*

(a) 6 Co. 20. a.

(b) 6 Co. 20, 21. a.

(c) F. N. B. 242. a.

(d) F. N. B. 241. b.

(e) *Ant.* 72. a. 6 Co. 12. a. F. N. B. 241. b. 19 E. 4. 8. b. 20 E. 4. 16. b. Cro. Jac. 3, 4. 1 Bulstr. 210.

(a) Br. Action sur le stat. 49. *Post.* 77. a.

† *Vide prox. pag.*